

**MEMORANDUM OF UNDERSTANDING BETWEEN THE
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT
BOARD OF EDUCATION AND THE
BRECKSVILLE-BROADVIEW HEIGHTS EDUCATION ASSOCIATION**

This Memorandum of Understanding (“MOU”) is entered into this ____ day of May, 2020 by and between the Board of Education of the Brecksville-Broadview Heights City Schools (“Board”) and the Brecksville-Broadview Heights Education Association (“Association”) (collectively the “Parties”).

WHEREAS, the Board and the Association entered into a collective bargaining agreement for the period of July 1, 2016 through June 30, 2021 (“Negotiated Agreement”) that has established provisions related to staff attendance on days when students are not in session, and other defined work rules related to attendance and the employee workday; and

WHEREAS, on March 14, 2020, the Director of the Ohio Department of Health (the “director”) ordered that all school buildings in the State of Ohio, including the Brecksville-Broadview Heights City School District (the “District”) be closed to students from March 16, 2020 through April 3, 2020, with such order subsequently amended by the Director on March 30, 2020 to extend such closure through May 1, 2020, and again on April 20, 2020 to extend such closure through the conclusion of the 2019-20 school year due to the outbreak and spread of coronavirus (COVID-19);

WHEREAS, given this directive, the Board and the Association recognize that there is a need for continued mutual cooperation and collaboration between the parties in order to address the impact of COVID-19 upon the community and the students we serve; and

WHEREAS, the Board and the Association recognize that the current Negotiated Agreement between the parties lacks clarity in addressing the unforeseen impact of COVID-19 without further discussions and interim negotiations between the parties; and

WHEREAS, the Board and the Association recognize that time is not available to conduct these discussions and interim negotiations due to the evolving impact of COVID-19 on the community; and

WHEREAS, the Parties believe it is in their mutual best interest to clarify the Negotiated Agreement.

NOW THEREFORE, in exchange for consideration, the value and sufficiency of which is herein acknowledged, the Parties agree as follows:

1. The Parties agree that, unless otherwise stated, in the MOU, all members of the Association covered by the Negotiated Agreement will be paid their regular wages, inclusive of all stipulations in the negotiated agreement unless specifically noted below, so long as the following conditions are satisfied:
 - i. The Parties understand and expressly agree that while schools are closed to students for the purpose of classroom instruction under the order of the Governor of the State

of Ohio, bargaining unit members represented by the Association will continue to provide educational opportunities to the students that they serve.

- ii. The Parties understand and expressly agree that members of the Association will generate remote learning lessons designed to engage students in the essential learning outcomes of the curriculum. Remote learning work completed by students during the time period of April 6, 2020 through May 29, 2020 will be submitted and documented in accordance with the developed remote learning/grading procedures per the grade-level of the student.
- iii. With reasonable flexibility, the Parties understand and expressly agree that until further notice, members of the Association will be assigned to work from home during this closure of schools. While members of the Association are expected to be available during their regular school day per the current collective bargaining agreement, members will establish a minimum of two (2) “office hours” during their day to communicate with students and parents, assign activities, answer emails, and to hold office hours to provide differentiation and extra help to students. Members of the Association will communicate with the administrators and parents their “office hours” timeframe. Members of the Association are expected to communicate daily with students and/or parents through available platforms (e.g., email, phone, REMIND text, Google Classroom, PowerSchool, ZOOM, etc.) or other existing platforms that were in use prior to the closure of schools. However, additional programs for which the employees have received training may be used upon the approval of the Superintendent or designee(s). Members of the Association are required to check their email daily and respond within 24 hours during contracted work days.
- iv. The Parties understand and expressly agree that the primary direction from the district is to provide flexible asynchronous learning opportunities for students. Meaning, members of the Association may utilize digital platforms to record a lesson and link the recording to their remote learning lesson plans, Google classroom site, or Classroom page for the students to “view only” versus interacting in a live environment. Live **or recorded** video **lessons conferencing platforms are permissible and should adhere to the utilization of must utilize** District approved platforms (e.g., Google Meets, ZOOM) or other existing platforms that were in use prior to the closure of schools **or approved by the administration for use thereafter.**
- v. **With reasonable flexibility, and based upon the direction of their building administrator, teachers shall attempt to provide at least two (2) recorded or live lessons per week per area of instruction.**
- vi. The Parties understand and expressly agree that members of the Association will only be required to report, **as a group,** to their classrooms or buildings in a manner that is in accordance with the orders of the Governor and/or Director.
- vii. With reasonable notice provided, the Parties understand and expressly agree that members of the Association will be required to virtually attend meetings as required by law for the purpose of complying with the laws and regulations as set forth by

IDEA and may be required to virtually attend other meeting requirements (e.g., staff, PLC, etc.) as stipulated in the Negotiated Agreement.

- viii. During this period of home assignment, members of the Association covered by the Negotiated Agreement must work their contracted days and may not accept other employment during their contracted work hours/workdays.
- ix. During the period of March 16, 2020 through April 5, 2020, members of the Association are not required to report any absences, nor submit an appropriate leave request (e.g., sick, personal, FFCRA, etc.).
- x. During the period of April 6, 2020 through the end of the 2019-2020 school year, members of the Association who are not able to meet the essential functions of their employment due to reasons associated with personal leave and/or short-term unpaid leave, must submit an appropriate leave request (e.g., personal, unpaid, FMLA, FFCRA) so the appropriate leave can be deducted. Teachers shall not be required to enter the routine use of contractually defined sick leave into the Frontline system except in the case of a serious health condition, as defined under the Family Medical leave Act, that is more than three (3) days in duration. **However, teachers may continue to enter daily sick leave into the Frontline system should the teacher feel the need to do so.** Nothing in this provision shall prevent the district from taking appropriate disciplinary action against a teacher in the event he/she engages in the falsification or abuse of leave.
- xi. The Parties understand and expressly agree that any calamity day provisions of the Negotiated Agreement do not apply to this time period as set forth in this MOU.
- xii. The Parties understand and expressly agree that Section 33, J (Merit Incentive for Attendance Payment), does not apply to the second semester as set forth in this MOU, however, all other provisions of the negotiated agreement related to the conversion and/or carryover of unused personal days shall remain in full force and effect. The payment of the merit incentive shall be prorated (ex: to a maximum of \$100.00) and shall apply to the first semester only.
- xiii. All on-cycle and off-cycle evaluations that were completed in full prior to March 16th, 2020 shall be deemed completed in accordance with the negotiated agreement and the terms of this MOU as outlined below.
- xiv. The evaluations for all off-cycle limited contract and tenured OTES/OSCES employees who have not completed their full evaluation cycle under the terms of the negotiated agreement by March 16th, shall be null and void and shall utilize the COVID-19 option in eTPES. The evaluation cycle for these employees will restart during the 2020-2021 school year. As an example, if a member was in year two of three in the cycle for 2019-2020, they will still be in year two of three in the cycle for 2020-2021. Such evaluation cycles will be completely new from the beginning and no information from the incomplete 2019-2020 evaluation cycle will be included in the 2020-2021 evaluation cycle, except as may be used to inform the development of the member's 2020-2021 growth or improvement plan.

- xv. For on-cycle tenured OTES/OSCES employees who have completed two observation cycles *and walkthroughs*, the Board will proceed with the completion of the evaluation process (ex: post-conference). Any remaining post conferences will be conducted virtually at a mutually agreed upon time.
- xvi. For on-cycle tenured OTES/OSCES employees who have completed one of their two observation cycles, or have completed their two observation cycles but are missing their walkthroughs, the Board may only proceed with the completion of the evaluation process (ex: walkthrough, pre-conference, observation, post-conference) by written mutual agreement between the employee and the employees' original evaluator. If the parties mutually agree in writing to go forward with the completion of the evaluation cycle, only those limited provisions of the OTES/OSCES rubric that can be assessed during a virtual observation can be utilized for the observation, walkthrough, etc. However, the evaluated employee shall be able to provide any additional documentation to support the OTES/OSCES rubric as needed and at the sole discretion of the employee.
- xvii. For on-cycle limited contract OTES/OSCES employees who have completed three observation cycles *and walkthroughs*, the Board will proceed with the completion of the evaluation process (ex: post-conference). Any remaining post conferences will be conducted virtually at a mutually agreed upon time.
- xviii. For on-cycle limited contract OTES/OSCES employees who have completed two of their three observation cycles, or have completed their three observation cycles but are missing their walkthroughs, the Board may only proceed with the completion of the evaluation process (ex: walkthrough, pre-conference, observation, post-conference) by written mutual agreement between the employee and the employees' original evaluator. If the parties mutually agree in writing to go forward with the completion of the evaluation cycle, only those limited provisions of the OTES/OSCES rubric that can be assessed during a virtual observation can be utilized for the observations, walkthrough, etc. However, the evaluated employee shall be able to provide any additional documentation to support the OTES/OSCES rubric as needed and at the sole discretion of the employee.
- xix. **The parties agree that some multi-year limited contract teachers who utilize the COVID-19 option in eTPES for the 2019-2020 school year may end up being in an evaluation cycle for the 2020-2021 school year that is out of sync with the expiration date of their multi-year limited contract. Should this occur, the evaluation requirements for a teacher whose contract is up for renewal/nonrenewal shall be controlling. For example, a teacher in year two of a three-year limited contract who receives a COVID-19 option in eTPES for the 2019-2020 school year will still be in year three of a three-year limited contract in 2020-2021. In this case, the teacher will need to be observed three times as per the terms of the Negotiated Agreement.**
- xx. **For the purposes of this MOU, any observations, walkthroughs, post-conferences, etc., that are conducted in a virtual or online capacity shall not**

be video or audio recorded or electronically saved in any way by the teacher or the administrator.

- xxi. For the purposes of this MOU, all limited contract and tenured non-OTES teachers shall be evaluated consistent with the terms outlined in articles xii through xix of this MOU.
- xxii. For non value-added teachers who have completed their cycles (i.e. other than “A” teachers) the District will utilize shared attribution to determine the student growth measure component of such evaluations.
- xxiii. For the purpose of shared attribution, a teacher who is labeled as A1 in eTPES shall assume their own earned value-added score entirely; a teacher labeled as A2 in eTPES shall assume 10% of their own earned value-added score and 40% of the district value-added score; and a teacher labeled as C in eTPES shall assume 100% of the district value-added score. The district value-added score **shall utilize the highest shared attribution rating permissible under the law.** ~~utilized is a “B” (score of 4) and taken from the 2019 state report card.~~
- xxiv. In accordance with modifications granted by ODE and the Superintendent of Public Instruction, the parties agree to extend the deadlines for completion of evaluations for bargaining unit members evaluated under OTES/OSCES set forth above as follows: evaluators will complete evaluation procedures by May 22nd and will provide a written result of the evaluation to the employee on or before May 29th, 2020.
- xxv. All other evaluations that are not completed in accordance with the negotiated agreement, or in accordance with the terms of this MOU (specifically provisions xii through xxi) are null and void and shall utilize the COVID-19 option in eTPES. The evaluation cycle for these employees will restart during the 2020-2021 school year. As an example, if a member was in year two of three in the cycle for 2019-2020, they will still be in year two of three in the cycle for 2020-2021. Such evaluation cycles will be completely new from the beginning and no information from the incomplete 2019-2020 evaluation cycle will be included in the 2020-2021 evaluation cycle, except as to may be used to inform the development of the member’s 2020-2021 growth or improvement plan.
- xxvi. For any employee whose employment the Board has not already acted upon in the Board’s minutes, the Board confirms and agrees that it will not non-renew any current bargaining unit members at the end of the 2019-2020 school year.
- xxvii. The Board agrees to grant continuing contracts to those employees who have requested to be considered for a continuing contract in accordance with the negotiated agreement, so long as these teachers have completed their full evaluation cycles consistent with the negotiated agreement and the terms of this MOU.
- xxviii. For teachers eligible for tenure, but who have not completed their full evaluation cycle, the Board shall approve a one-year limited contract.

- xxix. **During the 2019-2020, 2020-2021 and 2021-2022 school years only, the parties agree that the evaluations of members of the bargaining unit shall be considered comparable to one another for the purposes of the negotiated Reduction in Force. As such, the provisions of Section 30 shall serve as the procedures followed by the Superintendent and Board when making staff reduction decisions involving the suspension of contracts during the 2019-2020, 2020-2021 and 2021-2022 school years. For the 2020-2021 school year, and for any reduction in force that would be discussed and planned during the 2020-2021 school year, but would go into effect at the start of or during the 2021-2022 school year, all evaluations shall be deemed comparable for the purpose of any reduction in force.**
- xxx. Consistent with state and federal policy pronouncements, all supplemental contracts awarded for the 2019-2020 contract year will be paid in full as set forth in the Agreement between the Board and the Association. **The parties agree that the terms of this provision as it relates to the payment of supplementals for the 2019-2020 school year shall not be precedent setting for the 2020-2021 school year. Should the Governor or the Director of the Ohio Department of Health order that all school buildings in the State of Ohio be closed to students during all or part of the 2020-2021 school year, the parties will agree to prorate the payment of supplemental contracts based upon the duration of the order, the degree to which it is practical or possible to complete the supplemental contract, and the impact such order may have upon student learning.**
- xxxi. All evaluation procedures for 2020-2021 will remain in full force and effect as stated in the collective bargaining agreement between the parties. The Board and the BEA agree that the implementation of OTES 2.0 shall be postponed until the 2021-2022 school year.
- xxxii. The Parties understand and expressly agree that members of the Association will be required to report to work in accordance with the orders of the Governor and/or Director to prepare their classrooms/offices for summer cleaning. To the extent permissible per the Ohio Department of Education, the District may utilize teacher contracted days for purposes of planning and preparing for the 2020-2021 school year in lieu of student days.
- xxxiii. The Parties understand and expressly agree that members of the Association whom are Board approved to receive extended days will fulfill these additional time requirements as directed by the Superintendent/designee.
- xxxiv. The Parties understand and expressly agree that the delivery of District-wide online instruction is unprecedented and may result in **unintended unforeseen** consequences for the Board, Administration, the Association, and/or for individual members. Therefore, the Board agrees to forego disciplinary responses **for violations that are no fault of the member**, including **the** reporting of violations to the ODE for **violations of the Code of Conduct for unintended** violations of Board Policy or ODE's Licensure Code of Professional Conduct for Ohio Educators relative to the delivery of online instruction, so long as the member is found, after investigation by the Administration, to have been acting in good faith,

for the best interests of their students, and within the scope of their employment as defined by their job description and Board Policy. The parties agree that this provision shall not apply to the administration's mandatory reporting obligations to Children Services. Nothing herein shall be deemed to lessen the obligation of members of the Association from utilizing platforms for online instruction that have been approved by the District and/or the member's building administration.

2. The Parties agree that, before August 1, 2020, they will assess the need for any extension of this MOU beyond August 1, 2020.
3. This MOU shall prevail over any contrary provision in the Negotiated Agreement or any successor agreement.
4. This MOU shall set no precedent in any other matter between the Parties and shall not be referred to by any party in any other matter unrelated to this MOU or in regard to any other employee.
5. This MOU constitutes the entire agreement between the Board and the Association regarding the issues outlined herein. There are no other written or verbal agreements, understandings, or arrangements between the Parties regarding the issues outlined herein. Any amendment to this MOU must be in writing and signed by the Parties.

Subject to ratification, this Agreement will become effective upon the signatures of the parties below.

BRECKSVILLE-BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT BOARD OF
EDUCATION

BRECKSVILLE-BROADVIEW HEIGHTS
EDUCATION ASSOCIATION

Joelle Magyar, Superintendent

Bonnie Monteleone, BEA President

Kathleen Mack, Board President

Date: _____

Date: _____